

*"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."*

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

*(Karton v. Ari Design & Construction, Inc. (2021) 61 Cal.App.5th 734, 747.)*

**TENTATIVE RULINGS**  
**Judge Kimberly Knill, Dept. C31**

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to [www.occourts.org/media-relations/civil.html](http://www.occourts.org/media-relations/civil.html) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

**No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.**

**HEARING DATE: Friday, 5/22/2026 10:00 AM**

| #        | Case Name                                                         | Tentative                                                                                                                                                                                                                                                                                                                                   |
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| <b>1</b> | <b>Callahan vs. Anderson</b><br><b>30-2024-01440872-CU-FR-CJC</b> | <b>Motion to be Relieved as Counsel of Record</b><br><br>The motion of attorney Steven Vahidi to withdraw as attorney of record for Plaintiff is DENIED.<br><br>Counsel failed to file the required proposed order. (Cal. Rules of Court, rule 3.1362, subd. (e).)<br><br>Clerk to give notice.                                             |
| <b>2</b> | <b>John vs. Motel 6</b><br><b>30-2024-01427798-CU-PO-CJC</b>      | <b>Motion to be Relieved as Counsel of Record</b><br><br>The motion of attorney Mary Guirguis to withdraw as attorney of record for Plaintiff is DENIED.<br><br>The proof of service indicates the motion was served via mail. However, the declaration attests the motion was personally served on Plaintiff. Further, it does not confirm |

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|          |                                                                                                     | <p>counsel confirmed the last known address of Plaintiff for service by mail. Therefore, the proof of service is deficient.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>3</b> | <p><b>Bella Terra Associates, LLC vs. Sender One Bella Terra LLC 30-2024-01423200-CU-BT-CJC</b></p> | <p><b>Motion for Leave to File First Amended Complaint</b></p> <p>Plaintiff Bella Terra Associates, LLC's Motion for Leave to Amend is GRANTED.</p> <p>Defendants have not shown the change in the claim for damages will result in any prejudice.</p> <p>Plaintiff is ORDERED to file the proposed amended complaint attached to its Motion as Exhibit B within 5 days.</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>4</b> | <p><b>Thomas vs. City of Rancho Santa Margarita 30-2024-01396694-CU-PO-CJC</b></p>                  | <p><b>Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer</b></p> <p>Defendant Rancho Santa Margarita Landscape and Recreation Corporation's Motion for Leave to File a First Amended Answer is GRANTED.</p> <p>Defendant's request for judicial notice of the secured assessment role for the subject greenbelt and a certified copy of the recorded deed for the subject greenbelt is GRANTED.</p> <p>Plaintiff's objection to Defendant's request for judicial notice is OVERRULED.</p> <p>Defendant seeks leave to amend its answer to add the additional defense of immunity based on recreational entry onto land pursuant to Civil Code section 846 because it only recently learned it owned the greenbelt at issue. (Sorkin Decl., ¶ 8, Ex. D.)</p> <p>The parties initially believed the greenbelt, which is maintained by Defendant, was owned by the City. On 3/24/2026, during Plaintiff's deposition, defendant's counsel questioned Plaintiff concerning the exceptions to Civil Code section 846 and confirmed she did not have express permission to enter the greenbelt, she did not pay consideration to enter the greenbelt, and she had no knowledge that the indentation on the greenbelt was an intentionally placed trap. (See Sorkin Decl., ¶ 3; see also Anderson Decl., ¶ 10.)</p> |

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|  |  | <p>On 3/26/2026, Defendant's counsel went to the Orange County Assessor's office and the Recorder's office and learned for the first time that the subject greenbelt has been owned by Defendant since 1988 pursuant to a recorded grant deed. (Sorkin Decl., ¶ 5, RJN, Exs. A, B.) Defendant contends it was not aware of its ownership of the greenbelt prior to 3/26/2026 because some of the greenbelts are owned by the City while some are owned by Defendant. (Sorkin Decl., ¶ 4.)</p> <p>Defendant served verified discovery responses on 9/20/2024 denying it owned the greenbelt. (Anderson Decl., ¶ 5.) Defendant was obligated to make a reasonable effort to obtain such information before responding to discovery. (See <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 782 [concerning interrogatories].) Defense counsel fails to explain why such effort was not made prior to responding to the discovery or why such information was unavailable to Defendant until 3/26/2026.</p> <p>Nevertheless, the factual basis supporting the proposed defense did not become sufficiently clear until after Plaintiff's deposition on 3/24/2026 and Defense counsel's subsequent investigation into ownership of the greenbelt on 3/26/2026. Thereafter, Defendant acted diligently and in good faith. On 3/27/2026, Defendant informed Plaintiff of its intent and on 4/10/2026, Defendant began amending its prior discovery responses to state it owned the greenbelt. (See Anderson Decl., ¶¶ 11, 12.) Defendant filed the instant motion on 4/17/2026.</p> <p>Plaintiff has not shown prejudice. Plaintiff speculates additional discovery may be necessary without identifying the specific discovery needed. The defense is based on the same operative facts and allegations at issue throughout this case. Additional discovery is likely not necessary.</p> <p>Even if it were necessary, Plaintiff learned of Defendant's intent to pursue this defense when discovery was still open. Defendant informed Plaintiff of its intent on 3/27/2026 and non-expert discovery does not close until 5/26/2026. (See Anderson Decl., ¶¶ 11, 18.) Thus, Plaintiff has had time to conduct additional discovery.</p> <p>As to Plaintiff's argument the defense lacks merit, courts generally do not consider the validity of proposed amendments to a pleading on a motion for leave to amend. (See <i>Kittredge Sports Co. v. Sup. Ct.</i> (1989) 213 Cal.App.3d 1045, 1048.)</p> |
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|          |                                                                                                            | <p>Defendant is ORDERED to file the amended answer within 2 days.</p> <p>Defendant to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>5</b> | <b>Ford Motor Credit Company LLC vs. The Bros of Hope Corporation</b><br><b>30-2025-01507775-CU-BC-CJC</b> | <p><b>Motion to Compel Arbitration and Stay Proceedings</b></p> <p>Defendant Cyrille Tarla's unopposed Motion to Compel Arbitration and Stay Proceedings is GRANTED.</p> <p>The Retail Installment Sales Contract includes an arbitration provision which covers the claims asserted in the Complaint. (Tarla Decl., Ex. A ["Any claim or dispute ... which arises out of or relates to your credit application, purchase or condition of this Vehicle ... shall at your or out election, be resolved by neutral, binding arbitration ..."].)</p> <p>The matter is STAYED pending arbitration.</p> <p>Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>6</b> | <b>Cardona vs. Maruchan</b><br><b>30-2025-01525470-CU-WT-CJC</b>                                           | <p><b>Motion to Compel Arbitration and Stay Proceedings</b></p> <p>Defendant Priority Business Services, Inc.'s Motion to Compel Arbitration and Stay Action is GRANTED.</p> <p>Defendant's objections to the declaration of Plaintiff are OVERRULED.</p> <p>The Court will consider Defendant's new declaration filed in reply to the extent the declaration responds to an issue raised in opposition – whether Plaintiff executed a Spanish-language version of the arbitration agreement.</p> <p>Defendant asserts that as part of Plaintiff's hiring process, she electronically signed an arbitration agreement.</p> <p>Plaintiff does not dispute executing the agreement. She opposes the motion on the grounds that (1) the agreement does not identify the "Company" and was not signed by an employee of Defendant, (2) the agreement is unconscionable because it was part of a click-through onboarding screen which did not provide Plaintiff, a Spanish speaker, a Spanish explanation of its contents, and (3) the agreement states it is subject to "controlling law" including the California Arbitration Act without expressly providing for the requirements of <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24</p> |

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|  |  | <p>Cal.4th 83 (<i>Armendariz</i>), including fair allocation of costs and adequate discovery.</p> <p>Plaintiff also opposes the attempt of Defendant Maruchan, Inc., a non-signatory, to require Plaintiff to arbitrate her claims against it.</p> <p>First, the agreement is binding despite moving Defendant's failure to execute the agreement. "A party who has signed a written contract may be compelled specifically to perform it, though the other party has not signed it, if the latter has performed, or offers to perform it on his part, and the case is otherwise proper for enforcing specific performance." (Civ. Code, § 3388.) In the context of Plaintiff signing employment documents, it was sufficiently clear that Plaintiff agreed to arbitrate claims against Defendant.</p> <p>Second, Defendant has shown Plaintiff was given the option of completing onboarding documents in Spanish, including a Spanish version of the arbitration agreement. (Reply Decl. of Alvarez, ¶ 3.) Here, Plaintiff signed the Spanish version of the agreement. (Id. at ¶¶ 11-12.)</p> <p>Third, the agreement is not unconscionable as a matter of law. Defendant is not required to explain the agreement to Plaintiff or attach a copy of the applicable arbitration rules. The agreement sufficiently states it is subject to the procedures of the California Arbitration Act (CAA) and that Defendant shall pay for arbitration costs. It does not limit Plaintiff's rights to conduct discovery under the CAA or prevent Plaintiff from using any other procedure required under <i>Armendariz</i>. Plaintiff has not cited case law holding that the CAA's procedures are unconscionable.</p> <p><b>Defendant Maruchan, Inc's Joinder to Motion to Compel Arbitration</b></p> <p>The joinder of Defendant Maruchan, Inc., which was not a signatory to the agreement is GRANTED.</p> <p>Plaintiff alleges Maruchan, Inc. and moving Defendant were Plaintiff's dual employers. (Complaint, ¶¶ 6, 18.) Moving Defendant is a temporary staffing agency which assigned Plaintiff to work for its client, Maruchan, Inc. (Cox Decl., ¶¶ 2-3.)</p> <p>The agreement expressly applies to moving Defendant and its "owners, directors, officers, managers, employees, agents, and affiliated parties with its employee benefit and health plans." (Ex. B.)</p> <p>Under equitable estoppel, "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff</p> |
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|   |                                                                                                 | <p>to arbitrate its claims when the causes of action against the nonsignatory are 'intimately founded in and intertwined' with the underlying contract obligations." (<i>DMS Services, LLC v. Superior Court</i> (2012) 205 Cal.App.4th at 1346, 1354.) Here, Plaintiff's claims against moving Defendant and Maruchan, Inc. are intertwined because Plaintiff alleges she was concurrently employed by both Defendants. Moreover, the language of the agreement encompasses Defendant's agents and affiliates.</p> <p>The case is STAYED pending arbitration.</p> <p>Arbitration Status Review set for 5/27/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                            |
| 7 | <p><b>Diamond Peo, LLC vs. Kamran Staffing, Inc.</b><br/> <b>30-2022-01247086-CU-BC-CJC</b></p> | <p><b>Motion to Amend Judgment</b></p> <p>Plaintiff and Cross-Defendant Diamond PEO, LLC's motion for an order amending the judgment entered on September 5, 2024, to add Antonio Enciso, an individual, and Azul Staffing Group, LLC, a California limited liability company, as additional judgment debtors is DENIED.</p> <p>There is no evidence the proposed additional judgment debtors, Antonio Enciso and Azul Staffing Group, LLC, were served with the moving papers. Due process requires the proposed additional debtors be given notice and an opportunity to be heard.</p> <p>Clerk to give notice.</p>                                                                                                                                                                                                                                                                                                                         |
| 8 | <p><b>Chao vs. Chao</b><br/> <b>30-2024-01416045-CU-OR-CJC</b></p>                              | <p><b>Motion for Confirmation of Sale of Real Property</b></p> <p>Partition Referee Matthew L. Taylor's motion for confirmation of sale of real property is GRANTED.</p> <p><u>Standard on Motion to Confirm Partition Sale</u></p> <p>The purchaser, partition referee, or any party may move to confirm or set aside a partition sale. (Code Civ. Proc., § 873.720, subd. (a).) The moving party must give no less than 10 days' notice of motion to the purchaser and all other parties who have appeared in the action. (<i>Id.</i>, § 873.720, subd. (b)(1)-(2).)</p> <p>"At the hearing, the court shall examine the report and witnesses in relation to the report." (Code Civ. Proc., § 873.730, subd. (a).) "The court may confirm the sale notwithstanding a variance from the prescribed terms of sale if to do so will be beneficial to the parties and will not result in substantial prejudice to persons interested in the</p> |

sale.” (*Id.*, § 873.730, subd. (b).) On the other hand, “[t]he court may vacate the and direct that a new sale be made if it determines any of the following: (1) The proceedings were unfair or notice of sale was not properly given. If there is no finding at the hearing of unfairness or improper notice, the sale may thereafter not be attacked on such grounds. (2) The sale price is disproportionate to the value of the property. (3) It appears that a new sale will yield a sum that exceeds the sale price by at least 10 percent on the first then thousand dollars (\$10,000) and 5 percent on the amount in excess therefor, determined after a reasonable allowance for the expenses of a new sale.” (*Id.*, § 873.730, subd. (c)(1)-(3).)

“Upon confirmation of a sale, the court shall order the referee to execute a conveyance or other instrument of transfer, to collect the proceeds, take security, and perform other acts required to consummate the sale.” (Code Civ. Proc., § 873.750, subd. (a).)

#### Procedural Requirements

The Court finds Partition Referee Taylor has provided more than 10 days’ notice of the motion and complied with the relevant requirements of the interlocutory default judgment, including requirements relating to the retention of listing brokers, providing notice of sale, and seeking court confirmation of the proposed sale. (See ROA 78 [Proof of Serv. by Publication]; Mot. at 7:24-8:5; Taylor Decl. ¶¶ 3-4, Exs. 3-5.)

#### Proposed Sale

The Partition Referee moves to confirm the proposed sale of the property at 12635 Main Street, #201, Garden Grove, California, 92840, “as is, where is, and with all faults” to third parties Randall Tran and Shirley Liu for \$501,000.

Although the Partition Referee did not submit a separate report pursuant to section 873.710, the moving papers include all information required by the statute and show the proposed sale to be a fair, arms-length transaction. (See Mot. at 6:9-8:12; Taylor Decl. ¶¶ 3-7.)

The court record reflects no statutory justification to vacate the sale or direct a new sale. The terms of the proposed sale appear fair and there is no evidence the sale price is disproportionate to the value of the property. Further, there is no evidence a new sale will yield a sum exceeding the amounts set forth in section 873.730, subdivision (c)(3), to justify vacating the sale or directing a new sale.

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|    |                                                                                                                                                                                                                                    | <p>The Partition Referee is ORDERED to submit and serve the proposed final distribution order upon completion of sale of pursuant to Paragraph 9 of the Interlocutory Default Judgment.</p> <p>Partition Referee to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 9  | <p><b>Ty Matthew Maynarich, co-trustee of the 2721 Via Montecito Trust dated March 6, 2012, vs. Melissa Ryan Harris, co-trustee of the 2721 Via Montecito Trust Dated March 6, 2012</b><br/> <b>30-2025-01528963-CU-OR-CJC</b></p> | <p><b>Motion for Interlocutory Judgment or Partition and Appointment of Referee</b></p> <p>Off calendar pursuant to stipulation.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 10 | <p><b>Paz vs. Clarke Lew Medical Corp.</b><br/> <b>30-2025-01507092-CU-WT-CJC</b></p>                                                                                                                                              | <p><b>Demurrer to Complaint</b></p> <p>Defendant Clarke Lew Medical Corp.'s demurrer to Plaintiff Mireya Paz's Complaint is CONTINUED to 6/26/2026.</p> <p>No meet and confer took place because Plaintiff refused to engage in the meet and confer process. (Turner Decl., ¶ 10, Ex. D.) Plaintiff's refusal to engage in the meet and confer process was improper.</p> <p>The Court ORDERS the parties to meaningfully meet and confer <b><i>in person or by telephone or teleconference</i></b> concerning the issues raised in the demurrer with an eye toward reducing the number of issues or eliminating the need for a demurrer.</p> <p>Defendant is ORDERED to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will assume the issues have been resolved and take the demurrer off calendar.</p> <p>Moving Defendant to give notice.</p> |



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| <b>11</b> | <b>V. Lynn Hodge,<br/>as Trustee of<br/>the Plaza Del<br/>Sol Real Estate<br/>Trust Under<br/>Declaration of<br/>Trust Dated<br/>February 9,<br/>1996, as<br/>Amended, a<br/>California<br/>Revocable<br/>Trust vs. OC<br/>Media Tower,<br/>L.P.</b> | <b>Motion in Limine No. 1</b><br><br>Off calendar. |
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